

a matter of law, or that arises out of a relationship between the two.' [Citation omitted.]" (*Long v. PKS, Inc., supra*, 12 Cal.App.4th at 1297-1298 [quoting *Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d at 590].) (*See also Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984 [under California law, damages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff].)

There appears to be no dispute that the NIED claim arises out of a breach of duty in the provision of professional medical services, and that the one-year statute of limitations of Code of Civil Procedure section 340.5 applies to this cause of action. TPMG argues there is no separate cause of action for NIED under California law but does so only in the context of its argument that this cause of action is barred by the statute of limitations. Arguably, the NIED claim then merely alleges another claim for negligence with the emotional distress injury allegedly caused by TPMG's medical negligence. This cause of action against TPMG is barred by the one-year statute of limitations of Code of Civil Procedure section 340.5 for the same reasons as Plaintiff's second and third causes of action.

The demurrer to the third cause of action based on the statute of limitations is **sustained, with leave to amend**.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

3. 9:00 AM CASE NUMBER: C22-02341
CASE NAME: ALMA CANLAS VS. CSAA INSURANCE EXCHANGE, AN UNINCORPORATED ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: SU, ALIVIA
TENTATIVE RULING:

The **motion is granted as to Plaintiff Alivia Su**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

4. 9:00 AM CASE NUMBER: C22-02341
CASE NAME: ALMA CANLAS VS. CSAA INSURANCE EXCHANGE, AN UNINCORPORATED ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: ROBINSON, JOHN
TENTATIVE RULING:

The **motion is granted as to Plaintiff John Robinson**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

5. 9:00 AM CASE NUMBER: C22-02772

CASE NAME: MARYAMA ALHARK VS. CORTEVA AGRISCIENCE LLC, A DELAWARE LIMITED LIABILITY COMPANY

***HEARING ON MOTION IN RE: FINAL APPROVAL**

FILED BY: ALHARK, MARYAMA

TENTATIVE RULING:

Plaintiff Maryama Alhark moves for final approval of her class action and PAGA settlement with defendants Corteva Agriscience LLC and Hunter International, Inc.

A. Background and Settlement Terms

The original complaint was filed on December 20, 2022, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Separately, on February 28, 2023, a PAGA action was filed. It was amended on April 4, 2023. The cases were consolidated on July 31, 2023.

The settlement would create a gross settlement fund of \$1,750,000. The class representative payment to plaintiff would be \$10,000. Attorney's fees would be \$583,333.33 (one-third of the settlement). Litigation costs would not exceed \$25,000. The settlement administrator's costs would not exceed \$15,000. PAGA penalties would be \$150,000, resulting in a payment of \$112,500 to the LWDA and \$37,500 to plaintiffs. The net amount paid directly to the class members would be about \$966,667. (In conjunction with the motion for final approval, counsel refine the estimate to \$974,700.) The fund is non-reversionary. Based on the estimated class size of 448 people, the average net payment for each class member is approximately \$2,100 (now revised to \$2,331).

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be paid to the State Controller's unclaimed property fund.

Since preliminary approval, notice has been given. 417 notice packets were mailed, and only three were ultimately found undeliverable. One request for exclusion has been received, and no objections.

The settlement contains release language covering "all claims and causes of action alleged in the Class Action Complaint; and (ii) any and all additional claims that reasonably could have been alleged based on the facts stated in the Operative Complaints[.]" (Settlement, Par. 5.2) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative

complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees (\$583,333/33), relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) At the Court’s direction, counsel have prepared a lodestar fee estimate, estimating \$156,780, based on 195.9 hours, at a blended rate of \$800 per hour. This results in an imputed multiplier of 3.72. This imputed multiplier is relatively high for this type of case, in this Court’s experience. In addition, however, the average individual payment (\$2,331), is relatively high. The Court finds that a reasonable fee for this case would be 30% (as opposed to the requested 33 1/3%) which would constitute \$525,000. This still results in an imputed multiplier of 3.35.

Litigation costs of \$21,165.90 are reasonable and are approved.

Settlement administration costs of \$10,800 are reasonable and are approved.

The requested representative payment of \$10,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined “risk” by doing so. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, with the small reduction in the attorney’s fees. The motion is granted. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

The compliance hearing will be held in Department 16, the Honorable Benjamin Reyes, which is assigned to this case for all purposes as of March 1, 2026.

6. 9:00 AM CASE NUMBER: C23-02227
CASE NAME: LATINIA JOHNSON VS. WALMART INC.
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: JOHNSON, LATINIA
TENTATIVE RULING:

The **motion is granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of**